Philippine Bill of Rights Guide
Article III Constitutional Safeguards for Every Citizen & Student

Know Your Rights: A Simple Guide to the Philippine Bill of Rights

Article III Constitutional Safeguards, Due Process, and Lawful Arrest Protections

Course: Readings in Philippine History & Governance (GEDC 1006)
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Constitutional Text: 1987 Constitution of the Republic of the Philippines

1. The Cornerstones: Due Process & Equal Protection

Section 1 of Article III establishes the foundational shield of the Republic: *'No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws.'* Due process comprises both procedural fairness (notice and hearing) and substantive reasonableness.

> **KEY CONCEPT — Procedural Due Process:** Guarantees every individual the right to be formally informed of charges, granted a reasonable opportunity to explain their defense, and heard before an impartial, competent tribunal.

Article III Fundamental Protections at a Glance

Section	Constitutional Right	Practical Protection for Citizens
Section 1	Due Process & Equal Protection	Protects against arbitrary detention and discriminatory school actions
Section 2	Unreasonable Searches & Seizures	Warrants require probable cause determined personally by a judge
Section 3	Privacy of Communication	Private electronic chats cannot be wiretapped without judicial order
Section 4	Freedom of Speech & Assembly	Protects peaceful student journalism, critique, and academic discourse

2. Warrantless Arrest Exceptions (Rule 113, Sec. 5)

As a general rule, an arrest requires a judicial warrant of arrest. However, under Rule 113, Section 5 of the Revised Rules of Criminal Procedure, law enforcement officers may lawfully effect an arrest without a warrant under three strictly construed circumstances:

Exception Modality	Statutory Definition	Operational Example
In Flagrante Delicto (Rule 113, Sec. 5a)	The person is caught in the act of committing, attempting, or has actually committed an offense in the presence of th	An individual actively attempting unauthorized network intrus
Hot Pursuit (Rule 113, Sec. 5b)	An offense has just been committed, and the officer has probable cause based on personal knowledge of facts	Pursuing a suspect immediately fleeing an armed robbery sc
Escaped Prisoner (Rule 113, Sec. 5c)	The person is an escaped convict or detainee escaping lawful custody.	Apprehending an escapee from a municipal correctional facil

3. Custodial Investigation Protections (RA 7438)

Under Republic Act No. 7438 and Section 12, Article III of the Constitution, the moment a person is invited or detained for questioning as a suspect, custodial rights activate automatically. Any confession obtained in violation of these rights is inadmissible in evidence under the exclusionary rule.

Statutory Right	Constitutional Guarantee	Enforcement Rule
Right to Remain Silent	Any statement can and will be used in court	Silence cannot be construed as an admission of guilt
Right to Competent Counsel	Must be independent and preferably of own choice	If indigent, the State must provide counsel (PAO)
Prohibition of Coercion	No torture, violence, threat, or intimidation	Signed waivers require physical presence of defense counse
Right to Visits	Immediate access to medical, spiritual, & family	Officers must log all visitors and physical examinations

4. Quick Review Questions & Source Credits

Evaluate your constitutional literacy with these core scenario questions:

1. **What two fundamental legal guarantees are enshrined within Section 1, Article III of the 1987 Philippine Constitution?**
2. **Under Rule 113, Section 5(a), what specific condition is required for a warrantless arrest to be legally valid in flagrante**
3. **Explain the Exclusionary Rule (Fruit of the Poisonous Tree doctrine) under Section 3(2), Article III.**
4. **According to Republic Act No. 7438, what role must independent counsel play when a detained suspect signs an extraju**
5. **Does a school administrator have the legal authority to search a student's personal smartphone without a warrant or ex**

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• Statutory Sources: 1987 Constitution of the Republic of the Philippines; Republic Act No. 7438 (Rights of Persons Arrested, Detained or Under Custodial Investigation); Revised Rules of Criminal Procedure (Rule 113).